

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Idan Falek	Team: Squad #10	CCRB Case #: 202303935	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 04/21/2023 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/21/2024	Precinct: 111
Date/Time CV Reported Thu, 04/27/2023 11:54 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/04/2023 12:19 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Adriano Deleon	00000	940069	111 PCT
2. PO Christian Martinez	25911	964141	111 PCT
3. PO Irving Rawlins	10968	962049	111 PCT
4. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . PO Christian Martinez	Abuse: Police Officer Christian Martinez entered § 87(2)(b)	A . Complaint Withdrawn
B . PO Irving Rawlins	Abuse: Police Officer Irving Rawlins entered § 87(2)(b) in Queens.	B . Complaint Withdrawn
C . PO Irving Rawlins	Force: Police Officer Irving Rawlins used physical force against § 87(2)(b)	C . Complaint Withdrawn
D . LT Adriano Deleon	Force: Lieutenant Adriano Deleon used physical force against § 87(2)(b)	D . Complaint Withdrawn
E . LT Adriano Deleon	Force: Lieutenant Adriano Deleon used physical force against § 87(2)(b)	E . Complaint Withdrawn
F . Officers	Abuse: Officers forcibly removed § 87(2)(b) to the hospital.	F . Complaint Withdrawn
G . Officers	Abuse: Officers forcibly removed § 87(2)(b) to the hospital.	G . Alleged Victim Uncooperative

Case Summary

On April 27, 2023, § 87(2)(b) filed this complaint with the Internal Affairs Bureau, under IAB Log # 2023-13362, on behalf of himself and his wife, § 87(2)(b). On May 4, 2023, the CCRB received this complaint.

On May 10, 2023, the investigation called § 87(2)(b) and § 87(2)(b) at the number provided in his IAB Log. § 87(2)(b) and § 87(2)(b) each confirmed their mailing address, phone number, and dates of birth. Neither party have an email address. § 87(2)(b) and § 87(2)(b) provided the same phone number, which was a landline to their mailing address and the only phone to which they have access. An in-person interview was scheduled with § 87(2)(b) and § 87(2)(b) for May 12, 2023, at 11:00 a.m., although § 87(2)(b) expressed concerns around § 87(2)(b)'s ability to provide a full statement. § 87(2)(b) called the investigation on May 11, 2023, to reschedule the interview to be over the phone on May 12, 2023, at 1:30 p.m. On May 12, 2023, § 87(2)(b) left a voicemail asking to cancel the interview. When the investigation called him back on May 12, 2023, he asked to speak the following week to schedule an interview.

On May 15, 2023, the investigation called § 87(2)(b) to re-schedule an interview. § 87(2)(b) expressed that he wished to withdraw his complaint. He attested that he wished to do so of his free will, without coercion from the CCRB or NYPD, and because the investigation can only investigate the NYPD and he is unsatisfied with the potential outcomes of a CCRB case. The investigation then asked to speak to § 87(2)(b) to which § 87(2)(b) responded that she was ill and did not want to speak with the investigation or provide a statement. § 87(2)(b) then hung up the phone.

§ 87(2)(b)'s withdrawal audio is located in **IA16** of the digital casefile from 6:50 to 9:10 mark. IM Roche reviewed the recorded withdrawal and confirmed that it met agency standards.

Given that § 87(2)(b) has chosen to withdraw his complaint as per agency standards, it is recommended that **Allegations A through F** be closed as **complaint withdrawn**.

Given that § 87(2)(b) did not want to speak with the investigation, it is recommended that **Allegation G** be closed as **Victim Uncooperative**.

Squad: 10

Investigator:	<u>Idan Falek</u>	<u>Inv. Falek</u>	<u>5/15/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>05/19/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date